

NCRWC AND WORKING OF THE CONSTITUTION

PROVENANCE → MANDATE → WORKING → RECOMMENDATIONS → STATUS AUDIT → PERFORMANCE → ANSWER

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY

NCRWC IDENTITY, MANDATE AND CONSTITUTIONAL BOUNDARY ROOT QUESTION HOW CAN CONSTITUTIONAL PERFORMANCE BE REVIEWED WITHOUT CLAIMING CONSTITUENT 2000 GOVERNMENT RESOLUTION TEMPORARY EXECUTIVE ADVISORY COMMISSION. JUSTICE M.N. VENKATACHALIAH 11 MEMBERS

REPORT SUBMITTED IN 2002.

CONSTITUTIONAL BASIS / ARTICLE

- ROOT QUESTION
- How can constitutional performance be reviewed without claiming constituent power?
- 2000 Government resolution → temporary executive advisory commission.

POWER / PROCEDURE

- Justice M.N. Venkatachaliah → chair
- 11 members
- report submitted in 2002.

CHECK / LIMIT

- MANDATE review fifty years of working → effective governance + socio-economic development.
- BOUNDARY parliamentary democracy + basic structure preserved.
- VERDICT review of working != rewriting the Constitution.

FEDERAL / RIGHTS IMPACT

- Justice M.N. Venkatachaliah → chair

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The NCRWC reviewed constitutional working within parliamentary democracy and basic-structure limits, making it an advisory reform commission rather than a constituent assembly.

01

STAGE 01 CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL

CONSULTATION AND INSTITUTIONAL IDENTITY FIREWALL CONSULTATION PAPERS + EXPERT STUDIES + PUBLIC RESPONSES + ADVISORY REPORT. CONSTITUENT ASSEMBLY FRAMED CONSTITUTION. PARLIAMENT/ART 368 AMENDS THROUGH CONSTITUTIONAL PROCEDURE. LAW COMMISSION

CONSTITUTIONAL BASIS / ARTICLE

CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

CONSTITUENT ASSEMBLY → framed Constitution.

POWER / PROCEDURE

PARLIAMENT/ART 368 → amends through constitutional procedure.

LAW COMMISSION → law-reform reports.

CHECK / LIMIT

SARKARIA/PUNCHHI → Centre-State review.

NCRWC → comprehensive working review, no constituent authority.

FEDERAL / RIGHTS IMPACT

TRAP expertise and consultation create persuasion, not legal force.

CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

CONSTITUTIONAL BASIS / ARTICLE

- CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.
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POWER / PROCEDURE

- PARLIAMENT/ART 368 → amends through constitutional procedure.
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CHECK / LIMIT

- SARKARIA/PUNCHHI → Centre-State review.
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FEDERAL / RIGHTS IMPACT

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- CONSULTATION papers + expert studies + public responses + thematic deliberation → advisory report.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Composition caution: Membership gave the Commission legal, parliamentary, administrative and public-policy experience, but expertise did not convert its report into law or constituent power.

02

STAGE 02 WORKING OF THE CONSTITUTION: TEXT TO LIVED PERFORMANCE

WORKING OF THE CONSTITUTION TEXT TO LIVED PERFORMANCE ARTICLES + PARTS + SCHEDULES PARLIAMENT + EXECUTIVE + COURTS + FEDERAL UNITS + PRACTICE CONVENTIONS + PARTIES + ADMINISTRATION + POLITICAL INCENTIVES

OUTCOMES RIGHTS + ACCOUNTABILITY + DELIBERATION + FEDERAL TRUST KESAVANANDA BHARATI (1973) STRUCTURAL BOUNDARY.

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

PRACTICE conventions + parties + administration + political incentives

OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CONSTITUTIONAL BASIS / ARTICLE

- Articles + Parts + Schedules
- Parliament + executive + courts + federal units + bodies

POWER / PROCEDURE

- PRACTICE conventions + parties + administration + political incentives
- OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CHECK / LIMIT

- Kesavananda Bharati (1973) → structural boundary.
- Minerva Mills (1980) → limited amendment + rights-DPSP harmony.

FEDERAL / RIGHTS IMPACT

- Articles + Parts + Schedules
- Parliament + executive + courts + federal units + bodies

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional working converts text into restrained power, effective rights, accountable institutions and cooperative practice, so formal compliance alone cannot establish constitutional success.

03

STAGE 03 RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION DUTIES NEW RIGHTS, STRONGER IMPLEMENTATION AND PROPOSED DUTIES. PARTIES CRIMINALISATION, FINANCE, ECI SELECTION, PARTY LAW AND ANTI-DEFECTION.

02

STAGE 02

WORKING OF THE CONSTITUTION: TEXT TO LIVED PERFORMANCE

WORKING OF THE CONSTITUTION

TEXT TO LIVED PERFORMANCE

ARTICLES + PARTS + SCHEDULES

PARLIAMENT + EXECUTIVE + COURTS + FEDERAL UNITS +

PRACTICE CONVENTIONS + PARTIES + ADMINISTRATION + POLITICAL INCENTIVES

OUTCOMES RIGHTS + ACCOUNTABILITY + DELIBERATION + FEDERAL TRUST

KESAVANANDA BHARATI (1973)

STRUCTURAL BOUNDARY.

Articles + Parts + Schedules

Parliament + executive + courts + federal units + bodies

PRACTICE conventions + parties + administration + political incentives

OUTCOMES rights + accountability + deliberation + federal trust + remedies.

CONSTITUTIONAL BASIS / ARTICLE

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FEDERAL / RIGHTS IMPACT

- Articles + Parts + Schedules
- Parliament + executive + courts + federal units + bodies

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional working converts text into restrained power, effective rights, accountable institutions and cooperative practice, so formal compliance alone cannot establish constitutional success.

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STAGE 03

RECOMMENDATION CLUSTERS WITHOUT LAW-STATUS CONTAMINATION

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DUTIES NEW RIGHTS, STRONGER IMPLEMENTATION AND PROPOSED DUTIES.

PARTIES CRIMINALISATION, FINANCE, ECI SELECTION, PARTY LAW AND ANTI-DEFECTION.

ADMINISTRATION SITTINGS, COMMITTEES, PRIVILEGES, MINISTRY SIZE, CIVIL SERVICES AND

LOCAL GOVERNMENT APPOINTMENTS, ACCESS, GOVERNOR, ART 356, COUNCILS AND

STATUS EVERY NODE

NCRWC RECOMMENDATION UNTIL SEPARATELY ENACTED.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.	PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.	STATUS every node = NCRWC recommendation until separately enacted.	ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.
ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.	JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.	RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.	PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

CONSTITUTIONAL BASIS / ARTICLE

- RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.
- ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.

POWER / PROCEDURE

- PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.
- JUDICIARY / FEDERALISM / LOCAL GOVERNMENT appointments, access, Governor, Art 356, councils and devolution.

CHECK / LIMIT

- STATUS every node = NCRWC recommendation until separately enacted.
- RIGHTS / DPSP / DUTIES new rights, stronger implementation and proposed duties.

FEDERAL / RIGHTS IMPACT

- ELECTIONS / PARTIES criminalisation, finance, ECI selection, party law and anti-defection.
- PARLIAMENT / EXECUTIVE / ADMINISTRATION sittings, committees, privileges, ministry size, civil services and integrity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The NCRWC examined modern governance across rights, institutions, federalism and development, but its 249 recommendations required different constitutional, legislative or executive routes.

04

STAGE 04

IMPLEMENTATION AUDIT: EXACT, MODIFIED, SIMILAR OR PENDING

IMPLEMENTATION AUDIT

EXACT, MODIFIED, SIMILAR OR PENDING

LATER INSTRUMENT

LEGAL EFFECT

10% MINISTRY CEILING

91ST AMENDMENT (2003) USES 15%

MODIFIED RELATED REFORM, NOT EXACT ADOPTION.

JUDICIAL COMMISSION

PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT

10% ministry ceiling

91st Amendment (2003) uses 15% → modified related reform, not exact adoption.

judicial commission

CONSTITUTIONAL BASIS / ARTICLE

- PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT
- 10% ministry ceiling
- 91st Amendment (2003) uses 15% → modified related reform, not exact adoption.

POWER / PROCEDURE

- judicial commission
- NJAC enacted 2014, invalidated 2015 → not current NCRWC design.
- party law + narrow whip

CHECK / LIMIT

- no comprehensive enactment → substantially pending.
- disaster to Concurrent List
- Disaster Management Act 2005, no List transfer → statutory response, not adoption.

FEDERAL / RIGHTS IMPACT

- RULE chronology + similarity != proven implementation.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Implementation must match the exact recommendation to a later legal instrument and result, because thematic similarity does not prove formal adoption.

05

STAGE 05

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY ELECTIONS

JUDICIAL REVIEW.

LEGISLATURE SITTING TIME

DELEGATED LAW

FINANCIAL CONTROL.

FEDERAL PRACTICE CONSULTATION

GOVERNOR RESTRAINT

ACCOUNTABILITY elections

judicial review.

LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control.

FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

NCRWC AND WORKING OF THE CONSTITUTION • TILE 2/5 • same master rows 2182-5416 of 11962 • continues below

10% ministry ceiling

→ 91st Amendment (2003) uses 15% → modified related reform, not exact adoption.

→ judicial commission

CONSTITUTIONAL BASIS / ARTICLE • PROPOSAL → LATER INSTRUMENT → WORDING → LEGAL EFFECT → VERDICT • 10% ministry ceiling • 91st Amendment (2003) uses 15% → modified related reform, not exact adoption.	POWER / PROCEDURE • judicial commission • NJAC enacted 2014, invalidated 2015 → not current NCRWC design. • party law + narrow whip	CHECK / LIMIT • no comprehensive enactment → substantially pending. • disaster to Concurrent List • Disaster Management Act 2005, no List transfer → statutory response, not adoption.	FEDERAL / RIGHTS IMPACT • RULE chronology + similarity != proven implementation.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Implementation must match the exact recommendation to a later legal instrument and result, because thematic similarity does not prove formal adoption.

05

STAGE 05

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY, FEDERALISM AND LEGISLATIVE PRACTICE

ACCOUNTABILITY ELECTIONS

JUDICIAL REVIEW.

LEGISLATURE SITTING TIME

DELEGATED LAW

FINANCIAL CONTROL.

FEDERAL PRACTICE CONSULTATION

GOVERNOR RESTRAINT

ACCOUNTABILITY elections

judicial review.

LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control.

FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.

CONSTITUTIONAL BASIS / ARTICLE • ACCOUNTABILITY elections • judicial review.	POWER / PROCEDURE • LEGISLATURE sitting time → scrutiny → delegated law → opposition → financial control. • FEDERAL PRACTICE consultation → councils → Governor restraint → floor test → negotiated implementation.	CHECK / LIMIT • S.R. Bommai (1994) → federal and secular structural enforcement. • TRAP majority strength or coalition form does not itself prove good constitutional working.	FEDERAL / RIGHTS IMPACT • ACCOUNTABILITY elections • judicial review.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Constitutional accountability combines electoral, legal, financial and administrative controls, while legislative quality depends on time, committees, scrutiny and public reasons.

06

STAGE 06

CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT

CONSTITUTIONAL MORALITY AND RIGHTS ENFORCEMENT

CONSTITUTIONAL MORALITY TEXT + PROCEDURE + EQUAL CITIZENSHIP +

K.S. PUTTASWAMY (2017) PRIVACY + DIGNITY IN MODERN GOVERNANCE.

NAVTEJ SINGH JOHAR V. UNION OF INDIA (2018) CONSTITUTIONAL

RIGHTS WORKING GUARANTEE

AFFORDABLE REMEDY

PUBLIC JUSTIFICATION.

LIMIT MORALITY IS NOT PERSONAL PREFERENCE; LATER CASES ARE

CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.

K.S. Puttaswamy (2017) privacy + dignity in modern governance.

Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.

RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.

CONSTITUTIONAL BASIS / ARTICLE • CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint. • K.S. Puttaswamy (2017) privacy + dignity in modern governance.	POWER / PROCEDURE • Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights. • RIGHTS WORKING guarantee → institution → affordable remedy → compliance → public justification.	CHECK / LIMIT • LIMIT morality is not personal preference; later cases are not NCRWC implementation evidence. • CONSTITUTIONAL MORALITY text + procedure + equal citizenship + institutional role restraint.	FEDERAL / RIGHTS IMPACT • K.S. Puttaswamy (2017) privacy + dignity in modern governance. • Navtej Singh Johar v. Union of India (2018) constitutional morality + transformative rights.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: NCRWC proposals on rights, property, Directive Principles and duties remain recommendations whose current status must be tested against later constitutional text and law.

07

STAGE 07

REFORM-METHOD LADDER AND FEASIBILITY TEST

REFORM-METHOD LADDER AND FEASIBILITY TEST

DIAGNOSE TEXT GAP? CONVENTION FAILURE? CAPACITY DEFICIT? INCENTIVE FAILURE?

PRACTICE/CONVENTION REPAIR EXECUTIVE RULE OR CAPACITY ORDINARY LEGISLATION

ARTICLE 368 AMENDMENT

TEST BASIC STRUCTURE + RIGHTS + FEDERALISM + DEMOCRATIC

VERDICT USE THE LEAST LEGALLY SUFFICIENT AND INSTITUTIONALLY WORKABLE

DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?

practice/convention repair executive rule or capacity ordinary legislation

Article 368 amendment

TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.

CONSTITUTIONAL BASIS / ARTICLE • DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap? • practice/convention repair executive rule or capacity ordinary legislation	POWER / PROCEDURE • Article 368 amendment • TEST basic structure + rights + federalism + democratic legitimacy finance + implementation + review.	CHECK / LIMIT • VERDICT use the least legally sufficient and institutionally workable route. • DIAGNOSE text gap? convention failure? capacity deficit? incentive failure? remedy gap?	FEDERAL / RIGHTS IMPACT • practice/convention repair executive rule or capacity ordinary legislation • Article 368 amendment
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- transformative rights.

- Identify demand and exact recommendation.

